

Court No. - 21

Case :- WRIT - C No. - 7929 of 2024

Petitioner :- Firdaus Begam

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Hemant Sharma, Saurabh Kumar

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. None present for the petitioner in both the rounds.
2. Learned counsel for respondent Electricity Department is present.
3. Adjourned to 22.03.2024 as a fresh case.

Order Date :- 12.3.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The notice of provisional assessment states that, in case, objection is not filed, no separate order for final assessment shall be passed and straightaway recovery will be initiated.
2. We call upon the Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. to apprise the Court of the provision, under which, such a procedure can be adopted.
3. List as fresh on 01.04.2024, on which date, identical matters relating to other Discoms are coming before this Court for consideration.
4. In the meantime, it shall be open to the petitioner to file objections against the notice of provisional assessment dated 10.10.2023 and whereafter, respondent No.3 shall proceed in the matter strictly in accordance with the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code, 2005.
5. Shri Ashutosh Dwivedi, Advocate holding brief of Shri Baleshwar Chaturvedi, counsel for the respondent-Electricity Department shall communicate the instant order to the concerned official for necessary compliance.

Order Date :- 22.3.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. In compliance of our previous order, an affidavit has been filed by the Managing Director, Pashchimanchal Vidyut Vitran Nigam Limited stating that on 26.03.2024, an office memorandum has been issued requiring the assessing officers to recall all recoveries where prescribed procedure has not been followed.

2. A training session through video conferencing was held on 26.03.2024. The Chief Engineers of all zones have been directed to furnish details of remedial measures taken by the competent authorities in respect of assessments wrongly made.

3. Shri M.C. Chaturvedi, learned Additional Advocate General assisted by Shri Baleshwar Chaturvedi appearing on behalf of DISCOM prays for two weeks' time to file status report in relation to steps noted above. He points out that the impugned notice has been withdrawn. Therefore, we are not extending the interim order but keeping the matter pending to find out what further steps have been taken by the respondent-DISCOM to rule out such violations in future.

4. Accordingly, the case is adjourned for two weeks.

5. List on **18.04.2024** alongwith Writ-C No.3458 of 2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.4.2024

Ankit.

Court No. - 21

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Petitioner :- Firdaus Begam

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Hemant Sharma,Saurabh Kumar

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The instant petition has been filed challenging the notice of provisional assessment dated 10.10.2023 issued by respondent No. 3 for making assessment in a case of theft of electricity in exercise of power under Section 126 of the Electricity Act, 2003.
2. Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of the concerned DISCOM states that the Managing Director has filed his detailed affidavit disclosing the manner in which monitoring of theft cases would be done to ensure that no procedural irregularity is committed by the Assessing Officer and also to suggest and take action against the erring officer.
3. In relation to the case at hand, it is submitted that the petitioner is not appearing despite service of notice of provisional assessment. He states that final assessment has not yet been passed.
4. We notice that today, the case is fixed for consideration of the objections of the petitioner and for affording hearing to her.
5. Having regard to the said fact, the instant petition is **disposed of** with liberty to the respondents to make final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. Until final assessment order is passed, no coercive action shall be taken against the petitioner for realization of any amount on basis of the notice of provisional assessment.

Order Date :- 18.4.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)